

Amendment No. 1 to SB1790

Bailey  
Signature of Sponsor

**AMEND Senate Bill No. 1790**

**House Bill No. 1741\***

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 41, Chapter 21, Part 2, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Department" means the department of correction;

(2) "Formulary" means a list of prescription drugs approved for use within correctional facilities operated by or on behalf of the department; and

(3) "Non-opioid medication" means a drug or biological product that is indicated to produce analgesia without acting on the body's opioid receptors.

(b) The department may adopt or amend a formulary for use in the correctional facilities operated by or on behalf of the department.

(c)

(1) In establishing and maintaining the formulary, the department shall ensure that a non-opioid medication approved by the United States food and drug administration for the treatment or management of pain is not disadvantaged or discouraged with respect to coverage relative to an opioid or narcotic drug for the treatment or management of pain on the formulary.

(2) Subdivision (c)(1) does not prohibit an opioid medication from being preferred over other opioid medications, or a non-opioid medication from being preferred over other non-opioid medications.

(d) This section applies to a non-opioid medication after it has been approved by the United States food and drug administration for the treatment or management of pain, regardless of whether the drug has been reviewed by the department for inclusion on the formulary. This section also applies to drugs being provided through a contract between the department and a healthcare vendor for purposes of delivering healthcare services within correctional facilities.

SECTION 2. This act takes effect January 1, 2027, the public welfare requiring it.